Hustle Hive CIC – Data Protection Policy

Item	Detail
Organisation	Hustle Hive CIC, company no. 16691281
Data protection lead	Kieron Davis, Director
Safeguarding information	Gavin Copland, Director and Designated Safeguarding Lead
ICO registration number	ZC268067
Version	2.0
Effective from	October 2026
Next review	September 2027, or sooner if the law, our systems or our activities change

1. Purpose

Hustle Hive CIC holds personal information about children and young people, parents and carers, adult participants, staff, volunteers and partners. Some of it is highly sensitive, such as information about health, special educational needs, safeguarding and family circumstances. This policy explains how we collect, use, store, share, keep and dispose of personal information lawfully, fairly and securely.

2. Scope

This policy applies to all personal information we hold, on paper or electronically, including in email, cloud storage, our booking system and classroom.cloud. Everyone who handles personal information for us must follow it: directors, staff, volunteers, students on placement, contractors and anyone else with authorised access.

3. The law

We follow the UK General Data Protection Regulation (UK GDPR), the Data Protection Act 2018 as amended by the Data (Use and Access) Act 2025, and the Privacy and Electronic Communications Regulations (PECR), which apply to marketing emails. We also follow the Information Commissioner's Office (ICO) guidance and *Keeping Children Safe in Education*.

4. Data protection principles

We make sure personal information is:

1. used lawfully, fairly and openly;
2. collected for clear, specific purposes and not used for anything incompatible with them;
3. limited to what we actually need;
4. accurate and kept up to date;
5. kept no longer than necessary;
6. kept secure; and
7. handled in a way we can show complies with the law.

Before collecting any information, staff ask: do we need it, why, who needs to see it, and how long do we need to keep it?

5. Roles and responsibilities

Who	Responsibilities
Directors	Overall responsibility for data protection; make sure we are registered with the ICO and pay the annual data protection fee
Kieron Davis, data protection lead	Day-to-day lead; handles requests from individuals, data breaches and complaints; keeps our record of processing, privacy notices and data processing agreements up to date; arranges training
Gavin Copland, DSL	Makes sure safeguarding information is recorded, stored and shared appropriately
All staff and volunteers	Follow this policy; only access information they need for their role; keep information secure; report breaches straight away

As a small community interest company that is not a public authority and does not carry out large-scale monitoring, we are not required to appoint a formal Data Protection Officer. Kieron Davis is our point of contact for all data protection matters.

6. The information we hold

Whose information	Examples	Main lawful basis
Learners in alternative provision	Name, date of birth, contact details, school, referral and placement information, attendance, progress, behaviour, SEND and EHCP information, health information, safeguarding records, photos	Contract with the commissioning school or local authority; legal obligation and public interest for safeguarding
Children at holiday clubs, Maker Days and workshops	Name, age, emergency contacts, medical and dietary needs, collection arrangements, photos	Contract with the parent or carer; consent for photos used publicly

Whose information	Examples	Main lawful basis
Adult participants, such as Makers to Market	Contact details, application information, support needs, progress and outcomes for funders	Contract or legitimate interests; consent for photos used publicly
Parents and carers	Names, contact details, relationship to the child, payment details	Contract
Staff and volunteers	Contact details, employment records, qualifications, references, right to work, DBS information, training, pay	Contract and legal obligation
Mailing list subscribers	Name and email	Consent

Special category and criminal offence information

Some information is special category data, such as health, disability, ethnicity and religion. We also hold DBS and criminal records information for staff. We only use this where we have an additional legal condition under the Data Protection Act 2018, such as safeguarding children, meeting our employment obligations or equality monitoring. We keep an appropriate policy document setting out how we protect it. This information has extra protection and is only seen by people who need it.

Consent

We only rely on consent where it is the right basis, for example for photos used in our marketing or for our mailing list. Consent is clear, recorded, and can be withdrawn at any time. We do not rely on consent where we need information to keep people safe.

7. Sharing information

With commissioning schools and local authorities

For placed learners, we receive referral, SEND, medical and safeguarding information from the commissioning school or local authority, and share attendance, progress, behaviour, incidents and safeguarding concerns with them. We only share what is relevant and proportionate, using secure methods. Where possible, we agree what will be shared, how, and what happens at the end of a placement in our placement agreement.

For safeguarding

Data protection law never stops us sharing information to keep a child safe. Staff must not delay safeguarding action because of data protection worries. The DSL decides what to share with children's services, the police, health professionals and other agencies, following our Safeguarding policy and our Information Sharing and Confidentiality Policy, and records what was shared and why.

With funders and partners

We share anonymised or summary information with funders, such as The National Lottery Community Fund, to report on our work. We only share identifiable information where participants have been told about it.

8. Keeping information secure

- Every account uses a strong, unique password, and multi-factor authentication wherever it is available. Passwords are never shared.
- Devices are encrypted where possible, kept up to date and locked when left unattended.
- Access to safeguarding, medical and SEND information is restricted to the people who need it.
- Paper records are kept in locked cabinets, never left on display, and shredded when no longer needed.
- Information taken off site, for example IHP summaries on visits, is kept on the staff member at all times and brought back the same day.

Personal devices

Staff use Hustle Hive CIC devices and accounts for learner information wherever possible. Sensitive learner or safeguarding information must never be stored on personal devices. In an emergency, any information on a personal device is moved to an approved system and deleted from the device the same day.

Email

Before sending personal information, staff check the recipient carefully, send only what is needed, and use secure methods, such as password-protected files or the commissioning school's secure system, for safeguarding, SEND and medical information. Use BCC when emailing groups of parents.

AI tools

Personal or sensitive information about learners, families or staff must never be entered into public AI tools unless the Directors have approved the tool for that purpose and the right data protection safeguards are in place.

9. Our systems and suppliers

Where another organisation processes personal information for us, we check its data protection arrangements and make sure we have a written agreement that meets UK GDPR. We keep a list of these suppliers, which currently includes our email and cloud storage provider, our booking system and classroom.cloud. We check where suppliers store data and only use suppliers outside the UK where the right legal safeguards are in place.

Data protection impact assessments

We carry out a data protection impact assessment before starting any processing likely to cause a high risk to people, such as new monitoring technology or a new system for sensitive information. We have completed, or will complete, one for our use of classroom.cloud monitoring on learner devices.

Photographs and video

Photographs and video of identifiable people are personal data. We follow the consent and safety rules in our Online Safety and Media Policy.

10. People's rights

People have rights over their personal information, including the right to be informed, to access it, to have it corrected, and in some cases to have it erased, restricted, moved or to object to how it is used. Not every right applies in every situation. Any request, however it is made, must be passed to Kieron Davis straight away.

We tell people how we use their information through our privacy notices, including our Parent and Learner Privacy Notice and our website privacy policy.

Subject access requests

We respond to requests for access to personal information within one calendar month. This can be extended by up to two further months for complex requests, in which case we explain why. We confirm the person's identity, make reasonable and proportionate searches, and remove information about other people where needed. We do not release

information if doing so could put a child or anyone else at risk of serious harm, and the DSL is consulted on any request involving safeguarding records. Requests made by parents about a child take account of the child's age, understanding and rights.

Corrections

We correct inaccurate information. We do not delete professional opinions or records of events, such as safeguarding records, just because someone disagrees with them, but we can add a note recording their view.

11. Data breaches

A data breach is any loss, theft, unauthorised access to, or accidental sharing or destruction of personal information, for example an email sent to the wrong person or a lost device. Anyone who discovers or suspects a breach must tell Kieron Davis straight away, even if they caused it. We will never punish anyone for honestly reporting a mistake. Breaches are handled under our Personal Data Breach Policy, and reportable breaches are notified to the ICO within 72 hours of us becoming aware of them.

12. Keeping and disposing of information

We keep information only for as long as set out in our Records Retention Policy, then securely delete it, shred it or anonymise it. Safeguarding records are never deleted just because a learner has left. They are passed to the next setting or kept for the period in the schedule.

13. Training

All staff and volunteers receive data protection training during induction and every year. It covers confidentiality, security, phishing and scams, recognising requests and breaches, and safe information sharing.

14. Complaints

Anyone unhappy with how we have handled their personal information should contact Kieron Davis. We acknowledge complaints within 30 days and respond without undue delay. People also have the right to complain to the Information Commissioner's Office at ico.org.uk or on 0303 123 1113.

15. Breaches of this policy and review

Staff who do not follow this policy may face disciplinary action, and deliberate misuse of personal information may be a criminal offence. This policy is reviewed every year, and sooner after a significant breach or a change in the law or our systems.

Related policies

Read this policy alongside our Parent and Learner Privacy Notice, Information Sharing and Confidentiality, Personal Data Breach, Records Retention, Safeguarding and Child Protection, and Online Safety and Media policies, and our staff code of conduct.

Approval and signatures

This policy has been approved by the Board of Directors of Hustle Hive CIC.

Name	Position	Signature	Date
Gavin Copland	Director		
Kieron Davis	Director and data protection lead		
Carey Viala	Director		
Sarah Smith	Director		